

Form 1

Standard Residential Tenancy Agreement

This form of Tenancy Agreement is prescribed under *The Residential Tenancies Act* (the Act) and applies to all residential tenancies in Manitoba, other than tenancies that include tenant services or tenancies respecting a mobile home, mobile home site, or both. Two copies must be signed by both landlord and tenant. One copy must be given to the tenant within 21 days after it is signed.

This Tenancy Agreement is made in duplicate between:

Thorwin Properties, 1274 Archibald Street, Winnipeg MB, R2J 0Z3, (204) 222 - 2422, the Landlord
Legal name, address and telephone number of landlord(s)

and

Ateah, Kathryn, the Tenant
Name of tenant(s)

1. Rental Unit

The landlord agrees to rent to the tenant the rental unit at the following location:

11 - 585 Corydon Avenue, Winnipeg, MB R3L 0P3
Address

The unit is registered as a condominium ☐ Yes ☒ No

Note: If the unit is registered as a condominium, the unit may be sold. If it is sold and the purchaser wants to move in, the tenant may be given notice to move, subject to this agreement and any rights to continue living in the unit the tenant may have under *The Residential Tenancies Act* or *The Condominium Act*.

2. Term of Tenancy

Complete either (a) or (b), but not both:

(a) Fixed Term Tenancy

The tenancy is for a fixed term beginning on December 1, 2021 and ending on November 30, 2022.
(date) (date)

***NOTE: The tenant will take possession of the unit on November 23, 2021.

Unless the tenancy has been terminated in accordance with the Act, the landlord shall offer the tenant a renewal of this agreement at least three months before the date the agreement ends. If the tenant does not sign and return the renewal at least two months before the date the agreement ends, this agreement will expire on that date.

(b) Periodic Tenancy

The tenancy is periodic, beginning on _____, 20____ and continuing from _____.
(date) (week to week, month to month, or other period)

3. Deposit Required (maximum amount for security deposit = 1/2 of Rent Payable)
(maximum amount for pet damage deposit = 1 month of Rent Payable)

The landlord acknowledges receipt from the tenant of:

- ☐ a security deposit of \$ _____ on _____, 20____.
- ☐ a pet damage deposit of \$ n/a on _____, 20____.

4. Rent

Unless otherwise agreed upon, the tenant shall ensure that the rent is delivered to the address provided by the landlord.

Rent payments are due on the 1st day of each Month. The tenant must pay the rent on time. If the rent is not paid on the date it is due, the landlord may charge a late payment fee of \$10.00 for the first day the rent is due and \$2.00 a day after that until the rent is paid in full (maximum late payment fee – \$100.00). The landlord may also give the tenant a Notice of Termination for Non-Payment of Rent.

The tenant agrees to pay rent to the landlord in the following amount:

	Effective December 1, 2021	Effective July 1, 2022
Basic Rent :	\$ 906.00	\$ 1,067.00
For <u>1</u> parking spaces:	\$ 45.00	\$ 75.00
Other (specify):	\$	\$
Rent Payable	\$ 951.00	\$ 1,142.00
Less Rent Discount*	\$	\$ 4.00
Actual Amount Tenant Must Pay:	\$ 951.00	\$ 1,138.00

In the event, that the Tenant takes possession of the unit prior to the commencement date of this lease, the Tenant shall pay to the Landlord for the Tenant's use and occupancy on a per diem basis. It is agreed that the "tenancy month" hereby created begins on the commencement date, notwithstanding that the Tenant may take possession or be obligated to pay rent prior to that date at a pro-rated amount of \$250.13 for the period from **November 23, 2021** to the last day of **November** and all terms and conditions of this lease shall be in effect.

(Complete this section if a rent increase on the rental unit is due before the date this agreement ends.)

- ☐ The landlord plans to increase the rent by the annual rent increase guideline on (date) _____. The landlord must provide the tenant with a Notice of Rent Increase at least 3 months before the rent is increased.
- ☒ The landlord plans to apply for a rent increase above the guideline to increase the rent on (date) July 1, 2022. The proposed Rent Payable will be \$ 1,142.00. The landlord must provide the tenant with a Notice of Rent Increase at least 3 months before the rent is increased.

(Complete this section if there is a rent discount.)

*Rent Discount

A landlord is not required to offer a rent discount, but if a discount is given, it must be set out in writing. Reducing or removing a rent discount is not considered a rent increase under *The Residential Tenancies Act*. However, an unconditional discount cannot be reduced or removed unless the tenant receives written notice of at least 3 months. If a tenancy agreement or discount agreement is for a fixed term, a landlord cannot reduce or remove an unconditional discount during the term of the agreement. If a discount is subject to a condition, e.g. paying the rent on time, the landlord can withdraw it without notice if the tenant does not meet the condition.

The landlord is offering a rent discount of \$ 4.00 subject to the following conditions:

Rent is paid in full and on time every month

(Provide details of any conditions – add additional pages if necessary)

(Complete this section, if this form is being used to renew an existing tenancy agreement or there is a change to the discount during the term of this agreement.)

- ☐ Discount is the same as last year's or increased by \$ _____.
- ☐ Discount is reduced by \$ _____.
- ☐ Discount is removed.
- ☒ The proposed Rent Payable is subject to an application to the Residential Tenancies Branch for an above-guideline rent increase. The discount may be reduced or removed depending on the final decision on the landlord's application. In any event, the Actual Amount Tenant Must Pay will not exceed **\$1,138.00**

5. Services and Facilities

(a) The tenant agrees to pay for the following services and facilities:

Parking, cable, telephone, internet, laundry, electricity

(b) The landlord agrees to provide, or pay the supplier of, all other services and facilities, including the following utilities:

Water, boiler heat

The landlord must not reduce or withdraw a service that is included in the rent, unless the landlord applies to the Residential Tenancies Branch for approval.

6. Occupants of Rental Unit

In addition to the tenant and any increase in the tenant's family by marriage, birth or adoption during the tenancy, only the following people may occupy the rental unit:

7. Use of Rental Unit for Residential Purposes Only

The tenant agrees to use the rental unit and residential complex for residential purposes only and shall not carry on, or permit to be carried on, any trade or business in the rental unit without the written consent of the landlord.

8. Furniture

Check either (a) or (b):

- a) ☒ No furniture is provided.
b) ☐ Furniture is provided and an itemized list of the furniture is attached.

9. Obligations under Act

The landlord and tenant shall comply with all obligations imposed on them by the Act.

10. Assignments and Early Termination

This agreement may be assigned with prior written consent of the landlord. Alternatively, if a tenant wants to forgo the lease assignment process, they may terminate this agreement with 2 full rental payment periods notice. An early termination fee equal to half a month's rent will be added on to the ledger upon receipt of notice. The landlord will require an early termination agreement to be signed by all leaseholders.

11. Ending the Tenancy

The landlord or the tenant may terminate this agreement in the manner and under the circumstances described in the Act.

12. Additional Rules and Conditions

The landlord and tenant agree to comply with any additional rules and conditions that are attached to this tenancy agreement. To be enforceable, rules and any amendments must be given to the tenant in writing and be reasonable in all circumstances. Any additional rule or condition that is inconsistent with the Act cannot be enforced.

13. Insurance

It is the responsibility of the tenant to purchase and maintain tenant insurance for personal property and/or contents and additional living expenses. As well, this tenant insurance should include general liability in an amount of not less than \$1,000,000.00 which is the standard limit now included with most tenant insurance. You may be asked to provide a copy of your coverage at the request of the landlord.

14. Disclosure to Credit Bureaus

The tenant hereby consents to the Landlord disclosing information about the Tenant and information about their tenancy, including but not limited to the amount and timing of rent payments, good behavior, problematic behavior, any debt outstanding, and reviews of the Landlord's experience regarding the Tenant, with Equifax, Landlord Credit Bureau and other reporting agencies, which may then be used in a tenant record, credit report and credit score for the Tenant and shared with other landlords and credit grantors.

15. Signatures

Do not sign this agreement unless you understand and agree with everything in it.

Oct 14 / 21
Date

Thorwin Properties
Print name of Landlord

CB Patterson
Signature of Landlord

Oct 13, 2021
Date

Ateah, Kathryn
Print name of Tenant

Kathryn Ateah
Signature of Tenant

Note: Any change or addition to this tenancy agreement should be agreed to in writing and initialed by both the landlord and the tenant.

Resolving Disputes – If there are problems or disagreements, the landlord and tenant should try to talk to each other to find a solution. If they still cannot agree, either may contact the Residential Tenancies Branch for information about their rights and responsibilities or dispute resolution.

Residential Tenancies Branch Offices

Winnipeg
1700 – 155 Carlton St.
204-945-2476
1-800-782-8403
rtb@gov.mb.ca

Brandon
143-340 9th St.
204-726-6230
1-800-656-8481
rtbbrandon@gov.mb.ca

Thompson
113-59 Elizabeth Drive
204-677-6496
1-800-229-0639
rtbthompson@gov.mb.ca

The Residential Tenancies Act – The following information is intended as a brief explanation.

Please refer to the Act for the actual provisions.

Deposits ○ A landlord may collect a security deposit (maximum = 1/2 month's rent payable). ○ A landlord who allows a tenant to have a pet may also collect a pet damage deposit (maximum = 1 month's rent payable). ○ For rental units in subsidized housing, the amount of the deposit cannot be more than the allowed amount payable before the reduction on account of the subsidy. ○ The landlord is entitled to hold the deposit for the length of the tenancy. ○ The tenant is entitled to interest on the deposit from the date the deposit is paid to the date it is paid back, or ordered to be paid back. ○ The deposit can only be used for the last month's rent with the consent of the landlord.	Rent Increases ○ In most cases, a landlord can legally increase the rent only once every 12 months. ○ A landlord must give a tenant three months' written notice of a rent increase. ○ Each year, the government sets a limit on the amount that rents can be increased. This limit is called a rent increase guideline. The guideline applies to most rental units. ○ Tenants have the right to object to any rent increase, whether the increase is above, below or equal to the guideline. ○ Landlords who want to increase the rent by more than the guideline must receive approval from the Residential Tenancies Branch.
Landlord Responsibilities ○ provide a written receipt when rent is paid in cash (automatic debit or pre-authorized remittance are considered cash payments); ○ maintain the appearance of the rental unit in proper condition considering the length of time of the tenancy; ○ do repairs and keep the unit in good condition; ○ pay utility bills for essential services that are included in the rent (e.g. heat, gas, electricity, hot and cold water) so that service is not disconnected for non-payment; ○ do not interfere with the supply of essential services; ○ allow a tenant to enjoy the use of the rental unit and the residential complex for residential purposes; ○ investigate complaints of disturbance or endangering of safety as soon as possible and try to resolve the problem; ○ provide and maintain sufficient doors and locks to make a rental unit reasonably secure.	Right of Entry ○ A landlord usually needs to give a tenant written notice before they go into a suite. ○ The landlord must give the tenant at least 24 hours, but not more than two weeks' notice. ○ If there is a good reason that the landlord should not enter as shown in the notice, the tenant should let the landlord know. But, the tenant must allow the landlord to go in on another day or time. ○ A landlord may enter, after giving proper notice, to carry out responsibilities like repairs. ○ A landlord may enter without notice if there is an emergency or to show the premises to potential renters after a tenant has given or been given notice to move out. ○ A landlord or tenant must not change the lock to a rental unit without the other's consent.
Tenant Responsibilities ○ pay the rent on time; ○ keep the rental unit and the residential complex clean; ○ take reasonable care not to damage the rental unit and the residential complex; * ○ do not disturb others in the residential complex or neighbouring property; * ○ do not endanger the safety of others in the building; * ○ make sure that the people invited into the rental unit or residential complex do not cause damage or disturb or endanger the safety of others; * ○ obey the landlord's reasonable rules and regulations; ○ notify the landlord of necessary repairs. * including as a result of engaging in unlawful activity in the residential complex.	Ending the Tenancy Tenants ○ To end a month-to-month tenancy, notice must be given on or before the last day of a rental payment period to take effect on the last day of the next period. ○ A fixed-term agreement (e.g. one year lease) cannot usually be terminated during the term; there are some exceptions – contact the Branch for information. Landlords ○ Landlords may only terminate tenancies for cause (e.g. non-payment of rent, nuisance or damage) or if they require the rental unit for their own use or for renovations or demolition. ○ The length of notice required varies – contact the Branch for information.